REQUEST TO THE DISTRICT ATTORNEY GENERAL - CLEAR A CONVICTION YOU HAVE BEEN PARDONED FOR

TO: The office of the District Attorney General for the judicial district of the convicting court
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FROM: Maria-Alejandra O'Shaughnessy-Whitfield
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DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - CLEAR A CONVICTION YOU HAVE BEEN PARDONED FOR

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
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ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court convicted you, in which county, and which judicial district is that?
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Item 2. What is the docket or case number?
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Item 3. What is the exact T.C.A. section you were convicted under? It is tested against a closed list of seven excluded felonies.
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Item 4. Have you received a pardon from the Governor, and on what date?
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Item 5. Did the board of parole return a positive vote to receive a pardon, and on what date?
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Item 6. Was the conviction for an attempt, conspiracy, facilitation or solicitation to commit an offence? The exclusion list reaches those forms expressly.
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Item 7. Was the offence a sexual offence requiring registration as a sexual offender or violent sexual offender, or any sexual offence involving a minor?
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.....

Item 8. In your own words, is there anything you want the court to know about whether the offence was violent? After the 2026 amendment this is something the court weighs rather than a bar, and it is your account to give.

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Item 9. Have you ever been granted an expunction before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)? Subsection (d) states no bar of its own, so this is recorded rather than applied against you.

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Item 10. What is the state control number on your TBI criminal history?

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

FILING AND HANDOFF INSTRUCTIONS - CLEAR A CONVICTION YOU HAVE BEEN PARDONED FOR

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of a pardoned conviction, T.C.A. Sec. 40-32-107(d) as amended by Public Chapter 719, with procedure at Sec. 40-32-108.

Expunction of the pardoned conviction record, with the Sec. 40-32-110 effect. The pardon by itself does not clear the record; it opens this route. A person who received a pardon from the Governor following a positive vote of the Board of Parole recommending it, who petitions the convicting court, and whose conviction the judge finds was not for one of seven enumerated felonies, or an attempt, conspiracy, facilitation or solicitation to commit one of them: first degree murder under Sec. 39-13-202; second degree murder under Sec. 39-13-210; especially aggravated kidnapping under Sec. 39-13-305; aggravated child abuse under Sec. 39-15-402; especially aggravated robbery under Sec. 39-13-403; commission of an act of terrorism under Sec. 39-13-805; or a sexual offence for which the offender must register as a sexual offender or violent sexual offender under chapter 39, part 2 of title 40, or any sexual offence involving a minor. Codified through Public Chapter 608 and then amended by Public Chapter 719, effective 2026-04-14. Public Chapter 719 Section 1 deleted from Sec. 40-32-107(d)(1) the language 'was convicted of a nonviolent crime if the person', and Section 2 deleted and substituted Sec. 40-32-107(d)(1)(A), replacing an open-textured judicial finding that the offence was a nonviolent crime with a closed list of excluded felonies. Public Chapter 719 Section 3 rewrote Sec. 40-32-108(d)(2). Confirmed from the enacted text and material to the design: subsection (d) contains no waiting period, no sentence-completion checklist, no no-prior-expunction bar and no requirement that the offence predate a conviction for an expunction-ineligible offence. Those conditions appear in subsections (b) and (c) but not in (d). Its three requirements at (d)(1)(A), (B) and (C) are cumulative and exhaustive: the judicial finding against the seven-item exclusion list, a positive vote from the board of parole to receive a pardon, and receipt of a pardon by the governor. The eligibility screen for this route must therefore not import the (a) or (c) conditions, which would wrongly refuse petitioners the statute admits. Public Chapter 719 Section 3 rewrote Sec. 40-32-108(d)(2) so that the court weighs the interest of the petitioner against the best interests of justice and public safety; the rebuttable presumption that the petition should be granted is preserved only for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E). A subsection (d) petitioner therefore gets no presumption, and the court instead considers whether the offence sought to be expunged was violent and any other relevant factors presented by the petitioner and the district attorney general. Violence moved from a jurisdictional bar to a merits consideration.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court, then the clerk of that court

Once the district attorney general's office prepares the petition and proposed order, the petitioner files them with the clerk of the convicting court under Sec. 40-32-108(a) and pays the clerk's fee under T.C.A. Sec. 8-21-401. The generated artifact on this route is the participant's own controlled written request to

the office of the district attorney general, together with the participant's controlled eligibility record. It is not the statutory petition and it is not the proposed order: T.C.A. Sec. 40-32-108(e) requires both of those to be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk. LegalEase does not draft, complete, sign or hold out either instrument as its own, and does not make the district attorney general's legal determination.
Venue: The convicting court, under Sec. 40-32-108(a). The request goes to the district attorney general for that judicial district. A person with convictions in more than one judicial district deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. T.C.A. Sec. 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and was not retrievable from an official Tennessee source, so no figure is quoted. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized T.C.A. Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner and may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- The TBI certificate under T.C.A. Sec. 40-32-102(c) is required on this route and an order of expunction must not be entered unless it is attached. It is a court instrument completed by court staff and submitted to the TBI. LegalEase does not generate it, does not complete it and does not assert it has been obtained.
- Not official_pdf_fill, because no participant form exists: the Tennessee AOC publishes no expunction form of any kind, and TBI form BI-0333 is a court order carrying an approved-for-entry block with signature lines for defence, the district attorney general and the judge. Not process_guidance, because a genuine participant-facing written submission exists and its destination, addressee and operative content are all determined. The generated artifact is the request and the eligibility record, never the petition, the proposed order, the TBI certificate or the clerk's instrument.
- Public Chapter 719 Section 3 rewrote Sec. 40-32-108(d)(2) so that the court weighs the interest of the petitioner against the best interests of justice and public safety; the rebuttable presumption that the petition should be granted is preserved only for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E). A subsection (d) petitioner therefore gets no presumption, and the court instead considers whether the offence sought to be expunged was violent and any other relevant factors presented by the petitioner and the district attorney general. Violence moved from a jurisdictional bar to a merits consideration.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The office of the district attorney general declines to prepare the petition, or indicates it will oppose. Self-help stops and the participant is handed off to an attorney; the participant keeps the generated request, the controlled factual record and the instructions.
- Eligibility is disputed by the district attorney general's office. That is a contested determination for that office and, on filing, for the court; it is handed off to an attorney rather than argued in the packet.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee. Handed off to an attorney before anything is sent.
- Any unpaid court costs, fines, restitution or other assessments, which mean the sentence is not complete. The participant is directed to the convicting court's clerk to resolve the balance before the route reopens.
- Any borderline offence whose exact section cannot be matched against the current eligible list. Handed off to an attorney.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- Any case where the conviction may fall within one of the seven excluded felony categories, or within an attempt, conspiracy, facilitation or solicitation form of one. Handed off to an attorney rather than tested in the packet.
- Any case where the violence question is genuinely contested. After Public Chapter 719 it is a merits factor the court weighs, and arguing it is individualized advocacy; the participant is handed off to an attorney.
- Any participant who does not yet hold a pardon. The clemency application is a separate proceeding before the board of parole and the Governor and is referred out.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. They are prosecutor instruments. LegalEase generates the participant's request and eligibility record and nothing else, and never characterises either generated document as the district attorney general's petition or proposed order.

THE PAGES IN THIS SET

- tn_post_pardon-participant-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Clear a conviction you have been pardoned for)
- tn_post_pardon-participant-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Clear a conviction you have been pardoned for)